

TPP SECURE CUSTOMER PROTECTION PLAN TERMS & CONDITIONS

This self-storage facility provides you (hereinafter "Customer"), with a basic level of service pursuant to the Terms and Conditions of the Facility Rental Agreement (hereinafter "Rental Agreement") that you, the Customer signed. The Rental Agreement states Customer's property is stored at Customer's sole risk of loss or damage, the self-storage Owner/Operator is not liable for loss of or damage to the Customer's stored property, and Customer must have coverage for Customer's property while it is on the premises.

1. Protection Plan Agreement - Owner/Operator's Limited Retention of Legal Liability:

In consideration of the TPP Secure Plan payment (as initialed in the TPP Secure Addendum, hereafter "Addendum") and in addition to the monthly rent, the Owner/Operator shall not require the release of liability for property damage as stated in the Rental Agreement, up to the amount indicated in the Addendum and does not require Customer to insure Customer's stored property as otherwise required by the Rental Agreement. Instead, the Owner/Operator shall retain, rather than extinguish, its liability as imposed by law. The liability of the Owner/Operator under this Agreement shall be limited to loss or damage that occurs because of the Owner/Operator's failure to exercise the care that a reasonably prudent person would exercise in like circumstances or because of acts or omissions for which the Owner/Operator is liable under the law, including but not limited to vicarious liability, intentional tort, strict liability, and breach of common law or statutory duty. Loss or damage may be caused by, but not necessarily limited to, fire, smoke, theft, water damage or vandalism resulting from negligent operations of the facility Owner/Operator. Stored non-flammable inventory for business conducted away from the facility is covered. With acceptance of the TPP Secure Plan, Tenant Property Protection on behalf of the Owner, retains liability for losses resulting from fire/windstorm (excluding flood and storm surge) up to the Protection Plan Limit based on the Terms and Conditions of this Addendum.

2. Limit:

The most the TPP Secure Plan will pay for validated loss or damage to Customer's stored property under TPP Secure Plan Agreement is initialed on the signed Addendum. If the limit of this TPP Secure Plan exceeds the limit listed in the Rental Agreement, then the value of property stored by the Customer may be increased to the limit of a newly signed TPP Secure Plan. Customer agrees that any increases in the value allowed by this TPP Secure Plan will not apply to the types of property described in Provision 3 below.

3. What Will Not Be Repaired or Replaced and Customers Should Not Store:

The TPP Secure Plan will not pay to have repaired, replaced or pay for lost or damaged property that is in the open and not in a locked, fully enclosed self storage unit. The following items will not exceed \$500 sublimit in total: accounts, bills, currency, deeds, evidence of debt, securities, money, money orders, travelers' checks, stamps, paid receipts; any property you are not permitted to store under the terms of the Rental Agreement; jewelry, watches, precious or semi-precious stones, and stamps. The following items will not exceed 50% of the plan limit not to exceed \$2500: furs, or clothing trimmed in fur, antiques, works of art, mobile phones, perfumery, wines, cigars, spirit, and the like; consumer and commercial electronic items. This protection plan excludes animals, food, firearms, ammunition, stolen goods or contraband, explosives, flammables, and combustibles including but not limited to improperly maintained or stored lithium batteries; loss of data records other than the cost of blank data carrying materials; articles by their nature that cannot be replaced, musical instruments, artwork, personal photos, personal items, memorabilia and collectibles. Any stored content associated with a business conducted inside or out of a storage unit on the premises is excluded from any coverage by the TPP Secure Plan. This includes but not limited to any type of workshop, repair shop, or for any sales (retail or wholesale), renovation, decoration, painting, or other contracting. Coverage is intended for on-site facility storage only. Burglary claims are subject to a \$250 deductible per incident. This deductible is waived when proof is submitted of a disc, cylinder or Noke door system that was properly utilized to secure the unit. Proof is defined as photo of the damaged lock or receipt for purchase of the lock if it is no longer present on the unit. Burglary is defined as visible forced entry into the unit where damage to the unit itself is visible to gain entry. The absence of a lock does not fulfill the requirement of visible forced entry.

4. The TPP Secure Plan Will Not Pay for Damage to Customer's Stored Property Caused by any of the following:

Flood, surface water, underground water, or water that backs up through or overflows from a sewer, drain or sump; rodent, moths, insects, or vermin damage in excess of \$500 (rodent, moths, insects, or vermin coverage is null and void if perishables are stored within the unit); mold, mildew, or wet or dry rot; terrorist attack, war or military action, civil commotion, rebellion, loss due to an act of civil authority, pollution or smoke (off-premises smoke), improperly maintained and stored lithium batteries related damage; electromagnetic disruption, computer virus or processes, pressure waves, aircraft/aerial devices; earthquake or volcanic eruption; nuclear reaction, radiation or radioactive, biological or chemical hazardous materials and contamination; loss or damage occurring during loading and/or unloading and/or not contained within the storage unit at the time of the loss. The TPP Secure Plan will not pay

for any losses or damages resulting from unknown or mysterious causes., i.e., loss from theft without visible signs of forced entry into a securely locked space and accompanied by a police report, nor consequential loss of any kind or description. This TPP Secure Plan does not cover motor vehicles, boats, or other property if stored outdoors.

5. The Amount the TPP Secure Plan Will Pay if there is a Loss:

For any single liability event, the TPP Secure Plan will pay the lesser of the actual amount you (Customer), reasonably pay to repair damaged item(s) or to replace lost or damaged items with property of similar quality. The TPP Secure Plan may offer an agreed-upon payout instead of repairing or replacing. In no event will the TPP Secure Plan pay more than the limit stated in provision 2 of this document. NOTE:

- Household linens and clothing. Tenant Property Protection, on behalf of the Owner, will not pay for new items. Replacements will take into consideration the age, and condition and use fair market value of any lost or damaged item(s).
- Business Documents: Where there is loss of or damage to documents, Owner will pay the reasonable costs of reprinting and/or reasonable costs of reissue and or reconstitution including, where applicable fresh research or exploration to obtain essential information.
- Pairs and sets: Where any item is part of a pair or of a set, payment shall only be for the actual items which is lost or damaged. No payment will be made for any items which are part of a pair or set which are not lost or damaged.

The TPP Secure Plan will pay only valid claims according to the guidelines stated in these protections and exclusions. The TPP Secure Plan reserves the right to reclaim any damaged items paid for through the claims process. These items have explicitly been compensated for through the awarded claim.

6. Failure to Pay Rent:

If rent is not received within five (5) days of the due date, Customer's participation in the TPP Secure Plan shall terminate and the Owner/Operator shall not be liable for the loss of, or damage to, Customer's stored property from any cause whatsoever. At TPP Secure Plan's sole discretion, Customer's participation in the TPP Secure Plan may be reinstated upon payment of all rent and other charges due and owing.

7. Notification and Claims Filing Time Limits:

Notice of loss and/or damage must be made immediately to the Owner/Operator or Facility Manager at the time of loss or damage to the Customer's property, or when discovered upon removing the property from the unit, whichever is the soonest. All claims must be submitted within thirty (30) days of discovery to be honored. Customer is to provide TPP Claims proof of ownership records and receipts that prove the loss(es) are

Customer's owned property. For burglary claims, losses must be reported to the police and Facility Management. Additionally, Owner/Operator or the Facility Manager must verify a visible sign of forced entry, and a copy of the police report must be obtained by the Customer and provided to the Claims Administrator at Tenant Property Protection before the Customer's claim will be processed. Customer is not to move, remove, or discard any items from the unit until the Claims Adjuster, Owner/Operator or the Facility Manager has given the approval to do so. Customer is responsible to take photographs and/or video of the loss or damage in the unit to be included with the Customer's claim submission. Customer agrees to cooperate with the Claims Adjuster when filing a claim to ensure timely settlement. Please visit www.tppclaims.com for claims handling and instructions. A toll-free number is provided at the bottom of the webpage.

FRAUDULENT CLAIMS: Customers are responsible for providing accurate claims information. Any false statements made can lead to an investigation for potential fraud. Any detected fraud including filing false or inflated claims, providing misleading information when applying for, and submitting claims for services not provided or reimbursed for falsified or unvalidated ownership of contents will be immediately declined by the Administrator. Claim fraud is a felony offense, punishable by penalties ranging from 1-1/2 years to 10 years in prison, as well as restitution and fines.

8. Dispute Resolution:

Arbitration: The arbitration must be conducted on an individual basis, and the Customer and Owner agree not to act as a class representative or in a private attorney general capacity in any claim or Dispute. The arbitration must be brought within the time set by the applicable statute of limitations or within thirty (30) days of the Customer vacating the premises, whichever occurs first. The Federal Arbitration Act (FAA) shall govern this arbitration agreement. The arbitration shall be conducted by National Arbitration and Mediation (NAM) under its Comprehensive Dispute Resolution Rules and Procedures for the Self-Storage Industry. The NAM arbitration rules and procedures may be found at www.namadr.com.

Customer understands that Customer is waiving its right to a judicial adjudication of disputes with the Owner regarding this Agreement. The parties know the limited circumstances under which an arbitration award challenge may be made and agree to those limitations. Owner and Customer stipulate and agree that they have had sufficient time and opportunity to consider the implications of their decision to arbitrate and that this addendum about arbitration represents a voluntary choice after due consideration of the consequences of entering into this addendum. IF THE OWNER CHOOSES ARBITRATION, THE CUSTOMER SHALL NOT HAVE THE RIGHT TO LITIGATE A CLAIM IN SMALL CLAIMS COURT OR TO HAVE A JURY TRIAL. THE CUSTOMER IS ALSO GIVING UP THE CUSTOMER'S RIGHT TO PARTICIPATE IN A CLASS ACTION OR OTHER COLLECTIVE ACTION LAWSUIT

OR ARBITRATION. Each Party shall keep all Disputes, mediation, or arbitration proceedings strictly confidential, except for disclosures of information required by applicable law or regulation.

9. Participation Termination:

The Owner/Operator may cancel the TPP Secure Plan with a written thirty-day (30) notice to Customer (unless terminated earlier because of rent non-payment). The Terms and Conditions of this TPP Secure Plan are subject to change at the option of Tenant Property Protection with thirty (30) days written notice. If changed, the Customer may terminate TPP Secure Plan coverage on the effective date of change by giving the Owner/Operator or Facility Manager ten (10) days advance written notice to terminate as well as providing proof of homeowner's insurance coverage.

10. The Rental Agreement:

All Terms and Conditions of the Rental Agreement not specifically modified by the Addendum are in effect and binding on both the Owner/Operator and Customer. The Terms and Conditions are incorporated herein.

NOTICE: Neither the Owner/Operator nor the leasing representative is an insurance agent. This is not an insurance policy, and the Owner/Operator is not an insurance company. The Owner assumes business risk on its own, but it may purchase insurance coverage to transfer part, or all the liability retained under this Agreement.

Claim Contact: tppclaims.com

IMPORTANT CLAIM SUBMISSION INFORMATION: To ensure timely processing of your claim, please note that all necessary claim documentation must be received by TPP Claims within 30 days of discovery. All claims are administered through the third-party administrator, ClaimsPros. During the claims process, you may be contacted by our Claims Adjusters up to 8 times to complete the necessary steps. It is essential to respond promptly to these communications to avoid any delays. Failure to respond will result in the automatic decline and closure of your claim. If you have any questions or concerns regarding the claims process, please do not hesitate to reach out to us.

<https://tpptersandconditions.com>

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